

Court No. - 3

Case :- WRIT - C No. - 7884 of 2022

Petitioner :- Smt. Suman Tyagi And Another

Respondent :- State Of U.P And 3 Others.

Counsel for Petitioner :- Sanjay Kr. Srivastava

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Deepak Verma,J.

Heard Sri Sanjay Kumar Srivastava, learned counsels for the petitioners, learned Standing Counsel for the respondent no.1 and Sri Pranjal Mehrotra, learned counsel for the respondent nos.2 to 4.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari, calling for the record and to quash the order impugned dated 31.08.2021 (Annexure-9 to this writ petition) passed by the respondent no.3 directing the petitioners with serious warning for deposit of electricity bill, failing which the electricity connection will be disconnected permanently and a notice under rule 5 of Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Rules, 1958 will also be issued.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent No.3 to issue requisite electricity bill since 1.5.2020 till date in accordance with law within some stipulated period to be specified by this Hon'ble Court, so that the same be deposited by petitioners as early as possible."

Sri Pranjal Mehrotra, learned counsel for the respondent Nos.2 to 4 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioners, this writ petition is disposed off giving liberty to the petitioners to submit their objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioners.

For a period of eight weeks or till disposal of the objection of the petitioners, whichever is earlier, no coercive action shall be taken against the petitioners in pursuance of the impugned demand.

Order Date :- 30.5.2022

SKD